

Mr Nnamdi Okpala
via email

20/02/2025
Reference number
1083077

Dear Mr Okpala,

Decision under Section s184 Housing Act 1996 (as amended)

You contacted the Council seeking help with a housing issue because you are either homeless or at risk of losing your home. After assessing your circumstances, we regret to inform you that, you are not eligible for housing assistance. This decision is based on the Homelessness (Eligibility) (England) Regulations 2006 (SI 2006/1294), which state that we cannot provide housing assistance to individuals from abroad who are ineligible.

The law requires me to explain:

1. The inquiries made and information considered.
2. The legal test applied.
3. The reasons for this decision.

1. Inquiries Made and Information Considered

To reach this decision, I considered:

- Our telephone conversations on 14/02/2025, 17/02/2025, and 19/02/2025.
- Email correspondence from your mother dated 18/02/2025 and 19/02/2025.
- Documentation confirming your immigration status (Right to Work share code).
- Representations from your social worker via email dated 18/02/2025.
- The Government's Homelessness Code of Guidance 2018 (particularly Chapter 7).

You are a Nigerian national with a share code confirming your right to live and work in the UK without time restrictions. However, this does not confirm eligibility for public benefits or housing assistance.

2. Legal Test Applied

The legal framework governing eligibility includes:

Thurrock Council's Privacy Notice can be found on our website [Data Protection](#), which outlines your rights and how we collect, use, store, delete and protect your personal data.

1. **The Homelessness (Eligibility) (England) Regulations 2006**, as amended by subsequent regulations in 2012–2016. These regulations outline who qualifies for homelessness assistance under Part VII of the Housing Act 1996.
2. **Section 185 of the Housing Act 1996**, which states:
 - A person is not eligible for housing assistance if they are a "person from abroad" deemed ineligible under regulations made by the Secretary of State.
 - A person subject to immigration control requires specific leave to remain and must fall within prescribed categories to qualify for assistance.

Based on this test, I have determined that you are not eligible for housing assistance under Section 185 of the Housing Act.

3. Reasons for Decision

Under the above framework, two categories of individuals from abroad are ineligible for assistance:

1. **Persons Subject to Immigration Control:** These individuals require leave to enter or remain in the UK but must fall within prescribed classes to qualify for assistance.
2. **Other Ineligible Groups:** This includes certain British nationals returning from abroad, first-time arrivals, or European Economic Area nationals with restricted rights to reside in the UK.

You fall into the first category as a person subject to immigration control who does not meet the criteria for eligibility. The regulations specify that only individuals in the following groups qualify for housing assistance:

- **Class A:** Refugees granted status in the UK.
- **Class B:** Individuals with discretionary leave to remain (not subject to "no recourse to public funds").
- **Class C:** Those with unconditional leave to remain (settled status) who are habitually resident in the UK/Common Travel Area unless subject to sponsorship conditions within their first five years of residence (exceptions apply if a sponsor has died).
- **Class D:** Individuals granted humanitarian protection under immigration rules.
- **Class E:** Asylum seekers who applied before 3 April 2000.
- **Class F:** Relevant Afghan citizens granted leave under paragraph 276BA1 of immigration rules.

As a Nigerian national, you are subject to immigration control and must fall within one of these classes to qualify for assistance. To date, you have not provided documentation proving your immigration status meets any of these criteria.

Your Right to Request a Review

If you disagree with this decision, you have a right to request a review of this decision within 21 days of receipt of the decision. Please give us all the reasons why you believe

the decision is wrong, and any other information that you think should be taken into consideration. You should send your review request to;

The Reviews Manager, Housing Solutions Team, 2nd Floor, Civic Offices, New Road, Grays, RM17 6SL or email homelessreviews@thurrock.gov.uk

Should you have any queries regarding this letter, or if there has been any change in your circumstances, please do not hesitate to contact me on telephone number 01375 652820.

Yours sincerely

Chukwuemeka Ujah
Housing Solutions Officer